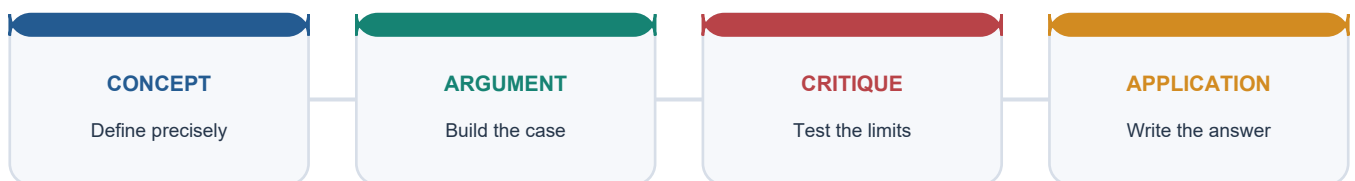


SOLVED PRACTICE WORKBOOK

NCRWC and Working of the Constitution - Solved Practice Workbook

32 MCQs, verified supporting PYQs and six solved Mains answers

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Solved Workbook Contents

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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NCRWC and Working of the Constitution - Solved Practice Workbook

PRACTICE WORKBOOK OVERVIEW

Complete the objective section first, then attempt the verified supporting PYQs and six original Mains questions under the stated word ceilings. Read the option explanations only after committing an answer.

Practice contract: Exactly 32 original MCQs follow. Correct options rotate A -> B -> C -> D eight times. Every option receives a substantive, unique, question-specific explanation, followed by one unique examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1

Which description of the NCRWC is constitutionally accurate?

A. A temporary executive advisory commission constituted by Union government resolution. B. A parliamentary joint committee exercising Article 368 power. C. A permanent constitutional commission created by amendment. D. A constituent body elected to replace the Constitution.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The NCRWC arose from an executive resolution and could recommend but could not amend, adjudicate or exercise constituent power. [Option A, MCQ 1]
- **B - Incorrect:** The option states "A parliamentary joint committee exercising Article 368 power." The tested rule is: The NCRWC arose from an executive resolution and could recommend but could not amend, adjudicate or exercise constituent power. [Option B, MCQ 1]
- **C - Incorrect:** The option states "A permanent constitutional commission created by amendment." The tested rule is: The NCRWC arose from an executive resolution and could recommend but could not amend, adjudicate or exercise constituent power. [Option C, MCQ 1]
- **D - Incorrect:** The option states "A constituent body elected to replace the Constitution." The tested rule is: The NCRWC arose from an executive resolution and could recommend but could not amend, adjudicate or exercise constituent power. [Option D, MCQ 1]

Examiner trap 1: Institutional origin determines legal force: an executive commission is not a constitutional body.

MCQ 2

Which chronology is correct?

A. Constituted 22 February 2000; report presented 31 March 2002. B. Constituted 26 January 1950; report presented 2000. C. Constituted 31 March 2002; report presented 22 February 2000. D. Constituted by the 91st Amendment; report presented in 2003.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "Constituted 22 February 2000; report presented 31 March 2002." The tested rule is: The verified dates are 22 February 2000 for the resolution and 31 March 2002 for presentation; the report was adopted on 11 March 2002. [Option A, MCQ 2]
- **B - Correct:** This is the precise rule: The verified dates are 22 February 2000 for the resolution and 31 March 2002 for presentation; the report was adopted on 11 March 2002. [Option B, MCQ 2]
- **C - Incorrect:** The option states "Constituted 31 March 2002; report presented 22 February 2000." The tested rule is: The verified dates are 22 February 2000 for the resolution and 31 March 2002 for presentation; the report was adopted on 11 March 2002. [Option C, MCQ 2]

- **D - Incorrect:** The option states "Constituted by the 91st Amendment; report presented in 2003." The tested rule is: The verified dates are 22 February 2000 for the resolution and 31 March 2002 for presentation; the report was adopted on 11 March 2002. [Option D, MCQ 2]

Examiner trap 2: Do not reverse constitution, adoption and presentation dates.

MCQ 3

Who chaired the eleven-member NCRWC?

- A. Justice R.S. Sarkaria. B. Justice B.P. Jeevan Reddy. C. Justice M.N. Venkatachaliah, former Chief Justice of India.
D. Dr Subhash C. Kashyap.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "Justice R.S. Sarkaria." The tested rule is: Justice M.N. Venkatachaliah chaired the eleven-member Commission; the chair is included in that count. [Option A, MCQ 3]
- **B - Incorrect:** The option states "Justice B.P. Jeevan Reddy." The tested rule is: Justice M.N. Venkatachaliah chaired the eleven-member Commission; the chair is included in that count. [Option B, MCQ 3]
- **C - Correct:** This is the precise rule: Justice M.N. Venkatachaliah chaired the eleven-member Commission; the chair is included in that count. [Option C, MCQ 3]
- **D - Incorrect:** The option states "Dr Subhash C. Kashyap." The tested rule is: Justice M.N. Venkatachaliah chaired the eleven-member Commission; the chair is included in that count. [Option D, MCQ 3]

Examiner trap 3: The presence of Justice Sarkaria did not turn NCRWC into the Sarkaria Commission.

MCQ 4

Which membership statement is correct?

- A. The secretary was the twelfth member. B. Advisory-panel members were automatically commissioners. C. The report was signed by twelve serving members. D. The Commission initially had eleven members including the Chair; P.A. Sangma later resigned.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "The secretary was the twelfth member." The tested rule is: The official composition contained eleven members including the Chair, while Dr Raghbir Singh served as secretary rather than member. [Option A, MCQ 4]
- **B - Incorrect:** The option states "Advisory-panel members were automatically commissioners." The tested rule is: The official composition contained eleven members including the Chair, while Dr Raghbir Singh served as secretary rather than member. [Option B, MCQ 4]
- **C - Incorrect:** The option states "The report was signed by twelve serving members." The tested rule is: The official composition contained eleven members including the Chair, while Dr Raghbir Singh served as secretary rather than member. [Option C, MCQ 4]
- **D - Correct:** This is the precise rule: The official composition contained eleven members including the Chair, while Dr Raghbir Singh served as secretary rather than member. [Option D, MCQ 4]

Examiner trap 4: Do not inflate membership by adding the secretary or advisory-panel participants.

MCQ 5

What was the core mandate boundary?

A. Review working within parliamentary democracy without disturbing basic structure or features. B. Draft a presidential Constitution outside Article 368. C. Suspend judicial review during the review. D. Replace federalism with administrative regions.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The terms required review of fifty years' working within parliamentary democracy and without disturbing the Constitution's basic structure or features. [Option A, MCQ 5]
- **B - Incorrect:** The option states "Draft a presidential Constitution outside Article 368." The tested rule is: The terms required review of fifty years' working within parliamentary democracy and without disturbing the Constitution's basic structure or features. [Option B, MCQ 5]
- **C - Incorrect:** The option states "Suspend judicial review during the review." The tested rule is: The terms required review of fifty years' working within parliamentary democracy and without disturbing the Constitution's basic structure or features. [Option C, MCQ 5]
- **D - Incorrect:** The option states "Replace federalism with administrative regions." The tested rule is: The terms required review of fifty years' working within parliamentary democracy and without disturbing the Constitution's basic structure or features. [Option D, MCQ 5]

Examiner trap 5: Review of working is constitutional maintenance, not authority to replace the constitutional settlement.

MCQ 6

Which statement best distinguishes review, amendment and replacement?

A. Every review report immediately changes constitutional text. B. Review recommends; Article 368 amends; replacement claims a fresh constituent mandate. C. Judicial interpretation and replacement are identical. D. State ratification is required for every ordinary law.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "Every review report immediately changes constitutional text." The tested rule is: A review is advisory, Article 368 supplies constituted amendment power, and constitutional replacement would require a distinct constituent claim. [Option A, MCQ 6]
- **B - Correct:** This is the precise rule: A review is advisory, Article 368 supplies constituted amendment power, and constitutional replacement would require a distinct constituent claim. [Option B, MCQ 6]
- **C - Incorrect:** The option states "Judicial interpretation and replacement are identical." The tested rule is: A review is advisory, Article 368 supplies constituted amendment power, and constitutional replacement would require a distinct constituent claim. [Option C, MCQ 6]
- **D - Incorrect:** The option states "State ratification is required for every ordinary law." The tested rule is: A review is advisory, Article 368 supplies constituted amendment power, and constitutional replacement would require a distinct constituent claim. [Option D, MCQ 6]

Examiner trap 6: Do not collapse advisory diagnosis, formal amendment and founding constituent power.

MCQ 7

Which comparison is accurate?

A. All commissions share one pooled constitutional mandate. B. Law Commission reports exercise judicial review. C. Sarkaria/Punchhi focus on Centre-State relations, ARC on administration, and NCRWC on constitutional working. D. NCRWC was a successor Constituent Assembly.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "All commissions share one pooled constitutional mandate." The tested rule is: The bodies may overlap thematically but retain separate constitutive sources, mandates and recommendation ownership. [Option A, MCQ 7]
- **B - Incorrect:** The option states "Law Commission reports exercise judicial review." The tested rule is: The bodies may overlap thematically but retain separate constitutive sources, mandates and recommendation ownership. [Option B, MCQ 7]
- **C - Correct:** This is the precise rule: The bodies may overlap thematically but retain separate constitutive sources, mandates and recommendation ownership. [Option C, MCQ 7]
- **D - Incorrect:** The option states "NCRWC was a successor Constituent Assembly." The tested rule is: The bodies may overlap thematically but retain separate constitutive sources, mandates and recommendation ownership. [Option D, MCQ 7]

Examiner trap 7: Commission names are not interchangeable citations.

MCQ 8

The officially reported recommendation-route count is:

A. 249 constitutional amendments. B. 58 total recommendations. C. 86 executive actions and 105 statutes. D. 249 total: 58 constitutional, 86 legislative and 105 executive.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "249 constitutional amendments." The tested rule is: The 249 recommendations were classified as 58 requiring constitutional amendment, 86 legislation and 105 executive action. [Option A, MCQ 8]
- **B - Incorrect:** The option states "58 total recommendations." The tested rule is: The 249 recommendations were classified as 58 requiring constitutional amendment, 86 legislation and 105 executive action. [Option B, MCQ 8]
- **C - Incorrect:** The option states "86 executive actions and 105 statutes." The tested rule is: The 249 recommendations were classified as 58 requiring constitutional amendment, 86 legislation and 105 executive action. [Option C, MCQ 8]
- **D - Correct:** This is the precise rule: The 249 recommendations were classified as 58 requiring constitutional amendment, 86 legislation and 105 executive action. [Option D, MCQ 8]

Examiner trap 8: Route counts describe proposed implementation vehicles, not completed implementation.

MCQ 9

Which rights proposal belongs to the NCRWC report?

A. Express protection against torture and stronger access to speedy justice. B. Deletion of Article 32. C. Suspension of equality during ordinary governance. D. Conversion of every DPSP into an immediately enforceable writ.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The report proposed express rights-related additions including protection against torture and access to courts and reasonably speedy justice. [Option A, MCQ 9]

- **B - Incorrect:** The option states "Deletion of Article 32." The tested rule is: The report proposed express rights-related additions including protection against torture and access to courts and reasonably speedy justice. [Option B, MCQ 9]
- **C - Incorrect:** The option states "Suspension of equality during ordinary governance." The tested rule is: The report proposed express rights-related additions including protection against torture and access to courts and reasonably speedy justice. [Option C, MCQ 9]
- **D - Incorrect:** The option states "Conversion of every DPSP into an immediately enforceable writ." The tested rule is: The report proposed express rights-related additions including protection against torture and access to courts and reasonably speedy justice. [Option D, MCQ 9]

Examiner trap 9: A proposed right is not current constitutional text merely because later doctrine protects a related interest.

MCQ 10

Which statement correctly captures the Duties/DPSP approach?

A. Abolish Part IV and Part IVA. B. Strengthen implementation review and propose additional duties such as voting and tax responsibility. C. Make every Directive Principle superior to every Fundamental Right. D. Allow duties to extinguish judicial review.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "Abolish Part IV and Part IVA." The tested rule is: The Commission sought stronger effectuation of DPSPs and proposed additional duties, while Part III-Part IV harmony remains controlled by constitutional doctrine. [Option A, MCQ 10]
- **B - Correct:** This is the precise rule: The Commission sought stronger effectuation of DPSPs and proposed additional duties, while Part III-Part IV harmony remains controlled by constitutional doctrine. [Option B, MCQ 10]
- **C - Incorrect:** The option states "Make every Directive Principle superior to every Fundamental Right." The tested rule is: The Commission sought stronger effectuation of DPSPs and proposed additional duties, while Part III-Part IV harmony remains controlled by constitutional doctrine. [Option C, MCQ 10]
- **D - Incorrect:** The option states "Allow duties to extinguish judicial review." The tested rule is: The Commission sought stronger effectuation of DPSPs and proposed additional duties, while Part III-Part IV harmony remains controlled by constitutional doctrine. [Option D, MCQ 10]

Examiner trap 10: Do not convert advisory duty proposals into enforceable Fundamental Duties.

MCQ 11

What did the NCRWC propose concerning Article 300A?

A. Restore Article 31 unchanged. B. Limit property protection to citizens. C. Add public-purpose and non-arbitrariness safeguards with specified rehabilitation protection. D. Permit deprivation by unsupported executive order.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "Restore Article 31 unchanged." The tested rule is: The report proposed stronger Article 300A safeguards, but the operative text still requires deprivation by authority of law. [Option A, MCQ 11]
- **B - Incorrect:** The option states "Limit property protection to citizens." The tested rule is: The report proposed stronger Article 300A safeguards, but the operative text still requires deprivation by authority of law. [Option B, MCQ 11]
- **C - Correct:** This is the precise rule: The report proposed stronger Article 300A safeguards, but the operative text still requires deprivation by authority of law. [Option C, MCQ 11]
- **D - Incorrect:** The option states "Permit deprivation by unsupported executive order." The tested rule is: The report proposed stronger Article 300A safeguards, but the operative text still requires deprivation by authority of law. [Option D, MCQ 11]

Examiner trap 11: Separate the Commission's proposed wording from current Article 300A.

MCQ 12

Which legislative-sitting recommendation is correct?

A. Lok Sabha 60 and Rajya Sabha 50 days. B. All Houses exactly 100 days. C. Only State legislatures received a minimum. D. Lok Sabha 120, Rajya Sabha 100, larger State Houses 90 and under-70-member Houses 50 days.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "Lok Sabha 60 and Rajya Sabha 50 days." The tested rule is: The report specified differentiated annual minima: Lok Sabha 120, Rajya Sabha 100, larger State Houses 90 and smaller State Houses 50. [Option A, MCQ 12]
- **B - Incorrect:** The option states "All Houses exactly 100 days." The tested rule is: The report specified differentiated annual minima: Lok Sabha 120, Rajya Sabha 100, larger State Houses 90 and smaller State Houses 50. [Option B, MCQ 12]
- **C - Incorrect:** The option states "Only State legislatures received a minimum." The tested rule is: The report specified differentiated annual minima: Lok Sabha 120, Rajya Sabha 100, larger State Houses 90 and smaller State Houses 50. [Option C, MCQ 12]
- **D - Correct:** This is the precise rule: The report specified differentiated annual minima: Lok Sabha 120, Rajya Sabha 100, larger State Houses 90 and smaller State Houses 50. [Option D, MCQ 12]

Examiner trap 12: Do not transpose the Union and State sitting-day figures.

MCQ 13

What legislative-process reform did the NCRWC support?

A. Committee scrutiny, public consultation and planned drafting before enactment. B. Automatic passage of all government Bills. C. Elimination of opposition time. D. Permanent replacement of legislatures by ordinances.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The report favoured expert and public input, Department-related Standing Committee scrutiny and more systematic legislative planning. [Option A, MCQ 13]
- **B - Incorrect:** The option states "Automatic passage of all government Bills." The tested rule is: The report favoured expert and public input, Department-related Standing Committee scrutiny and more systematic legislative planning. [Option B, MCQ 13]
- **C - Incorrect:** The option states "Elimination of opposition time." The tested rule is: The report favoured expert and public input, Department-related Standing Committee scrutiny and more systematic legislative planning. [Option C, MCQ 13]
- **D - Incorrect:** The option states "Permanent replacement of legislatures by ordinances." The tested rule is: The report favoured expert and public input, Department-related Standing Committee scrutiny and more systematic legislative planning. [Option D, MCQ 13]

Examiner trap 13: Legislative efficiency does not mean removing deliberation.

MCQ 14

A constructive vote of no confidence means:

A. The President selects a replacement government. B. A no-confidence motion is accompanied by a proposed alternative leader. C. The outgoing ministry remains indefinitely. D. Courts vote on legislative confidence.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "The President selects a replacement government." The tested rule is: The NCRWC proposed simultaneous identification of an alternative leader, with notice by at least twenty per cent of House membership. [Option A, MCQ 14]
- **B - Correct:** This is the precise rule: The NCRWC proposed simultaneous identification of an alternative leader, with notice by at least twenty per cent of House membership. [Option B, MCQ 14]
- **C - Incorrect:** The option states "The outgoing ministry remains indefinitely." The tested rule is: The NCRWC proposed simultaneous identification of an alternative leader, with notice by at least twenty per cent of House membership. [Option C, MCQ 14]
- **D - Incorrect:** The option states "Courts vote on legislative confidence." The tested rule is: The NCRWC proposed simultaneous identification of an alternative leader, with notice by at least twenty per cent of House membership. [Option D, MCQ 14]

Examiner trap 14: Constructive confidence preserves House responsibility; it does not judicialise government formation.

MCQ 15

Why is the 91st Amendment not exact adoption of the NCRWC ministry proposal?

A. It abolished the Council of Ministers. B. It applies only to local bodies. C. It uses a 15 per cent constitutional ceiling, while NCRWC proposed 10 per cent. D. It made the report binding.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "It abolished the Council of Ministers." The tested rule is: The later constitutional amendment addressed ministry size but selected a materially different ceiling and State minimum. [Option A, MCQ 15]
- **B - Incorrect:** The option states "It applies only to local bodies." The tested rule is: The later constitutional amendment addressed ministry size but selected a materially different ceiling and State minimum. [Option B, MCQ 15]
- **C - Correct:** This is the precise rule: The later constitutional amendment addressed ministry size but selected a materially different ceiling and State minimum. [Option C, MCQ 15]
- **D - Incorrect:** The option states "It made the report binding." The tested rule is: The later constitutional amendment addressed ministry size but selected a materially different ceiling and State minimum. [Option D, MCQ 15]

Examiner trap 15: The same policy field does not establish exact adoption.

MCQ 16

Which anti-defection package is accurately attributed to NCRWC?

A. Speaker's decision becomes wholly unreviewable. B. One-third splits receive permanent protection. C. Defectors automatically retain remunerative office. D. Resign and recontest, office bar, invalid destabilising vote and ECI decision on disqualification.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "Speaker's decision becomes wholly unreviewable." The tested rule is: The Commission combined electoral consequences, an office bar, treatment of the destabilising vote and transfer of adjudication to the Election Commission. [Option A, MCQ 16]
- **B - Incorrect:** The option states "One-third splits receive permanent protection." The tested rule is: The Commission combined electoral consequences, an office bar, treatment of the destabilising vote and transfer of adjudication to the Election Commission. [Option B, MCQ 16]
- **C - Incorrect:** The option states "Defectors automatically retain remunerative office." The tested rule is: The Commission combined electoral consequences, an office bar, treatment of the destabilising vote and transfer of adjudication to the Election Commission. [Option C, MCQ 16]
- **D - Correct:** This is the precise rule: The Commission combined electoral consequences, an office bar, treatment of the destabilising vote and transfer of adjudication to the Election Commission. [Option D, MCQ 16]

Examiner trap 16: Do not add an unverified narrow-whip proposal to the NCRWC package.

MCQ 17

Which campaign-finance position did the NCRWC take?

- A. Regulate contributions and expenditure, audit party/candidate accounts and improve donor-donee accountability.
B. Keep all party accounts confidential. C. Treat corporate funding as constitutionally immune. D. Leave candidate and party expenditure permanently unrelated.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The report linked transparent funding to statutory audit, consolidated regulation and accountability of contributors and recipients. [Option A, MCQ 17]
- **B - Incorrect:** The option states "Keep all party accounts confidential." The tested rule is: The report linked transparent funding to statutory audit, consolidated regulation and accountability of contributors and recipients. [Option B, MCQ 17]
- **C - Incorrect:** The option states "Treat corporate funding as constitutionally immune." The tested rule is: The report linked transparent funding to statutory audit, consolidated regulation and accountability of contributors and recipients. [Option C, MCQ 17]
- **D - Incorrect:** The option states "Leave candidate and party expenditure permanently unrelated." The tested rule is: The report linked transparent funding to statutory audit, consolidated regulation and accountability of contributors and recipients. [Option D, MCQ 17]

Examiner trap 17: Later political-finance judgments are governing law, not proof of NCRWC authorship.

MCQ 18

Which appointment body did NCRWC recommend for the Election Commission?

- A. The Supreme Court collegium alone. B. Prime Minister, opposition leaders in both Houses, Lok Sabha Speaker and Rajya Sabha Deputy Chairman. C. All Chief Ministers acting unanimously. D. The incumbent Chief Election Commissioner alone.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "The Supreme Court collegium alone." The tested rule is: The proposed multi-office body included government, opposition and parliamentary presiding officers; it is not the current appointment rule by virtue of the report. [Option A, MCQ 18]
- **B - Correct:** This is the precise rule: The proposed multi-office body included government, opposition and parliamentary presiding officers; it is not the current appointment rule by virtue of the report. [Option B, MCQ 18]
- **C - Incorrect:** The option states "All Chief Ministers acting unanimously." The tested rule is: The proposed multi-office body included government, opposition and parliamentary presiding officers; it is not the current

appointment rule by virtue of the report. [Option C, MCQ 18]

- **D - Incorrect:** The option states "The incumbent Chief Election Commissioner alone." The tested rule is: The proposed multi-office body included government, opposition and parliamentary presiding officers; it is not the current appointment rule by virtue of the report. [Option D, MCQ 18]

Examiner trap 18: State the NCRWC panel as a recommendation, not operative law.

MCQ 19

Which civil-service proposal is correctly stated?

A. Remove all Article 311 protection without process. B. Make every post hereditary. C. Use statutory Civil Services/Personnel Boards for placements, promotions and transfers. D. Transfer service control to the Election Commission.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "Remove all Article 311 protection without process." The tested rule is: The report proposed statutory personnel boards, modern evaluation and wider senior-level recruitment while retaining a calibrated protection-accountability balance. [Option A, MCQ 19]
- **B - Incorrect:** The option states "Make every post hereditary." The tested rule is: The report proposed statutory personnel boards, modern evaluation and wider senior-level recruitment while retaining a calibrated protection-accountability balance. [Option B, MCQ 19]
- **C - Correct:** This is the precise rule: The report proposed statutory personnel boards, modern evaluation and wider senior-level recruitment while retaining a calibrated protection-accountability balance. [Option C, MCQ 19]
- **D - Incorrect:** The option states "Transfer service control to the Election Commission." The tested rule is: The report proposed statutory personnel boards, modern evaluation and wider senior-level recruitment while retaining a calibrated protection-accountability balance. [Option D, MCQ 19]

Examiner trap 19: Administrative professionalism requires both insulation and answerability.

MCQ 20

Which governance chain best reflects NCRWC recommendations?

A. Secrecy, oral orders and immunity. B. No audit and no legislative reporting. C. Abolition of anti-corruption law. D. Information access, whistle-blower protection, audit follow-up and integrity institutions.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "Secrecy, oral orders and immunity." The tested rule is: Transparency, protected disclosure, audit, confiscation tools, vigilance and ombudsman institutions formed a connected accountability architecture. [Option A, MCQ 20]
- **B - Incorrect:** The option states "No audit and no legislative reporting." The tested rule is: Transparency, protected disclosure, audit, confiscation tools, vigilance and ombudsman institutions formed a connected accountability architecture. [Option B, MCQ 20]
- **C - Incorrect:** The option states "Abolition of anti-corruption law." The tested rule is: Transparency, protected disclosure, audit, confiscation tools, vigilance and ombudsman institutions formed a connected accountability architecture. [Option C, MCQ 20]
- **D - Correct:** This is the precise rule: Transparency, protected disclosure, audit, confiscation tools, vigilance and ombudsman institutions formed a connected accountability architecture. [Option D, MCQ 20]

Examiner trap 20: Do not attribute every later integrity statute causally to NCRWC.

MCQ 21

Which statement describes the NCRWC's judicial appointments proposal?

A. A distinct constitutional National Judicial Commission, not the later NJAC and not the current collegium. B. Direct election of judges. C. Appointment by the Union Law Minister alone. D. A statutory tribunal replacing the Supreme Court.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The NCRWC proposed its own National Judicial Commission design; the 99th Amendment/NJAC and current collegium are separate legal arrangements. [Option A, MCQ 21]
- **B - Incorrect:** The option states "Direct election of judges." The tested rule is: The NCRWC proposed its own National Judicial Commission design; the 99th Amendment/NJAC and current collegium are separate legal arrangements. [Option B, MCQ 21]
- **C - Incorrect:** The option states "Appointment by the Union Law Minister alone." The tested rule is: The NCRWC proposed its own National Judicial Commission design; the 99th Amendment/NJAC and current collegium are separate legal arrangements. [Option C, MCQ 21]
- **D - Incorrect:** The option states "A statutory tribunal replacing the Supreme Court." The tested rule is: The NCRWC proposed its own National Judicial Commission design; the 99th Amendment/NJAC and current collegium are separate legal arrangements. [Option D, MCQ 21]

Examiner trap 21: Similar institutional names can conceal different composition and legal status.

MCQ 22

For Supreme Court appointments, the proposed Commission included:

A. All Chief Ministers and Governors. B. CJI, two senior-most Supreme Court judges, Union Law Minister and one eminent person. C. Only retired judges. D. Prime Minister, Speaker and CAG.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "All Chief Ministers and Governors." The tested rule is: The specified composition mixed three judicial members, the Union Law Minister and an eminent person nominated after consultation with the CJI. [Option A, MCQ 22]
- **B - Correct:** This is the precise rule: The specified composition mixed three judicial members, the Union Law Minister and an eminent person nominated after consultation with the CJI. [Option B, MCQ 22]
- **C - Incorrect:** The option states "Only retired judges." The tested rule is: The specified composition mixed three judicial members, the Union Law Minister and an eminent person nominated after consultation with the CJI. [Option C, MCQ 22]
- **D - Incorrect:** The option states "Prime Minister, Speaker and CAG." The tested rule is: The specified composition mixed three judicial members, the Union Law Minister and an eminent person nominated after consultation with the CJI. [Option D, MCQ 22]

Examiner trap 22: Do not import the later NJAC membership into the NCRWC design.

MCQ 23

Which tribunal proposition is current constitutional law?

A. Tribunals may exclude all High Court review. B. Executive control is irrelevant to independence. C. *L. Chandra Kumar* preserves High Court judicial review while tribunal design must secure expertise and independence. D. Every tribunal requires a constitutional amendment.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "Tribunals may exclude all High Court review." The tested rule is: Tribunal reform usually proceeds by statute and administration, but it remains bounded by independence and the judicial-review holding in *L. Chandra Kumar*. [Option A, MCQ 23]
- **B - Incorrect:** The option states "Executive control is irrelevant to independence." The tested rule is: Tribunal reform usually proceeds by statute and administration, but it remains bounded by independence and the judicial-review holding in *L. Chandra Kumar*. [Option B, MCQ 23]
- **C - Correct:** This is the precise rule: Tribunal reform usually proceeds by statute and administration, but it remains bounded by independence and the judicial-review holding in *L. Chandra Kumar*. [Option C, MCQ 23]
- **D - Incorrect:** The option states "Every tribunal requires a constitutional amendment." The tested rule is: Tribunal reform usually proceeds by statute and administration, but it remains bounded by independence and the judicial-review holding in *L. Chandra Kumar*. [Option D, MCQ 23]

Examiner trap 23: Expertise cannot become a label for executive control or exclusion of constitutional review.

MCQ 24

Which federal recommendation is accurate?

A. Abolish the Inter-State Council. B. Delete Article 356 in all circumstances. C. Make Governors directly elected. D. Strengthen Inter-State Council consultation and establish an Article 307 trade-and-commerce body.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "Abolish the Inter-State Council." The tested rule is: The NCRWC emphasised structured consultation under Article 263 and an Inter-State Trade and Commerce Commission under Article 307. [Option A, MCQ 24]
- **B - Incorrect:** The option states "Delete Article 356 in all circumstances." The tested rule is: The NCRWC emphasised structured consultation under Article 263 and an Inter-State Trade and Commerce Commission under Article 307. [Option B, MCQ 24]
- **C - Incorrect:** The option states "Make Governors directly elected." The tested rule is: The NCRWC emphasised structured consultation under Article 263 and an Inter-State Trade and Commerce Commission under Article 307. [Option C, MCQ 24]
- **D - Correct:** This is the precise rule: The NCRWC emphasised structured consultation under Article 263 and an Inter-State Trade and Commerce Commission under Article 307. [Option D, MCQ 24]

Examiner trap 24: Cooperative federalism requires institutions and practice, not uniform central control.

MCQ 25

What did NCRWC recommend regarding Governors?

A. Consult the Chief Minister before appointment and normally respect the five-year term. B. Allow removal without any institutional restraint. C. Give Governors a popular mandate superior to the Assembly. D. Transfer appointment to the Supreme Court.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: The Commission retained presidential appointment but added Chief Minister consultation and a parallel restraint for removal or transfer. [Option A, MCQ 25]
- **B - Incorrect:** The option states "Allow removal without any institutional restraint." The tested rule is: The Commission retained presidential appointment but added Chief Minister consultation and a parallel restraint for removal or transfer. [Option B, MCQ 25]
- **C - Incorrect:** The option states "Give Governors a popular mandate superior to the Assembly." The tested rule is: The Commission retained presidential appointment but added Chief Minister consultation and a parallel restraint for removal or transfer. [Option C, MCQ 25]

- **D - Incorrect:** The option states "Transfer appointment to the Supreme Court." The tested rule is: The Commission retained presidential appointment but added Chief Minister consultation and a parallel restraint for removal or transfer. [Option D, MCQ 25]

Examiner trap 25: Consultation is not unilateral State appointment.

MCQ 26

Which Article 356 position is correct?

A. It should be the normal response to political disagreement. B. Retain it as a last resort, test majority on the floor and avoid premature Assembly dissolution. C. Governors may decide majority support privately. D. Parliamentary approval is unnecessary.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "It should be the normal response to political disagreement." The tested rule is: The report's restraint-based approach aligns analytically with floor-test constitutionalism, while S.R. Bommai remains an independent judicial authority. [Option A, MCQ 26]
- **B - Correct:** This is the precise rule: The report's restraint-based approach aligns analytically with floor-test constitutionalism, while S.R. Bommai remains an independent judicial authority. [Option B, MCQ 26]
- **C - Incorrect:** The option states "Governors may decide majority support privately." The tested rule is: The report's restraint-based approach aligns analytically with floor-test constitutionalism, while S.R. Bommai remains an independent judicial authority. [Option C, MCQ 26]
- **D - Incorrect:** The option states "Parliamentary approval is unnecessary." The tested rule is: The report's restraint-based approach aligns analytically with floor-test constitutionalism, while S.R. Bommai remains an independent judicial authority. [Option D, MCQ 26]

Examiner trap 26: A later case can support the legal rule without proving implementation of the report.

MCQ 27

Which statement about reserved State Bills is accurate?

A. The Constitution presently fixes NCRWC's periods verbatim. B. The President must decide every Bill in seven days. C. NCRWC suggested about six months for the Governor and three for the President, but these were recommendations. D. Article 200 authorises indefinite inaction.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "The Constitution presently fixes NCRWC's periods verbatim." The tested rule is: The suggested periods structured discretion but did not by themselves amend Articles 200-201. [Option A, MCQ 27]
- **B - Incorrect:** The option states "The President must decide every Bill in seven days." The tested rule is: The suggested periods structured discretion but did not by themselves amend Articles 200-201. [Option B, MCQ 27]
- **C - Correct:** This is the precise rule: The suggested periods structured discretion but did not by themselves amend Articles 200-201. [Option C, MCQ 27]
- **D - Incorrect:** The option states "Article 200 authorises indefinite inaction." The tested rule is: The suggested periods structured discretion but did not by themselves amend Articles 200-201. [Option D, MCQ 27]

Examiner trap 27: Never present proposed timelines as current constitutional text.

MCQ 28

What was the decentralisation thrust?

A. Return all local functions to Union ministries. B. Abolish State Election Commissions. C. Treat Parts IX and IXA as self-executing without State action. D. Clarify functions, fiscal domains, staff control, elections, audit and dissolution safeguards.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "Return all local functions to Union ministries." The tested rule is: The report sought operational self-government through functions, funds, functionaries, election integrity and financial accountability. [Option A, MCQ 28]
- **B - Incorrect:** The option states "Abolish State Election Commissions." The tested rule is: The report sought operational self-government through functions, funds, functionaries, election integrity and financial accountability. [Option B, MCQ 28]
- **C - Incorrect:** The option states "Treat Parts IX and IXA as self-executing without State action." The tested rule is: The report sought operational self-government through functions, funds, functionaries, election integrity and financial accountability. [Option C, MCQ 28]
- **D - Correct:** This is the precise rule: The report sought operational self-government through functions, funds, functionaries, election integrity and financial accountability. [Option D, MCQ 28]

Examiner trap 28: Constitutional recognition does not guarantee actual devolution.

MCQ 29

How should a later law resembling an NCRWC recommendation be classified?

A. Compare exact proposal, route, wording, legal effect and attribution before assigning status. B. Assume implementation from chronology. C. Treat similarity as proof of adoption. D. Call every later judgment an executive action.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the precise rule: A disciplined audit distinguishes exact, modified, related/unproven, judicial, displaced and pending outcomes. [Option A, MCQ 29]
- **B - Incorrect:** The option states "Assume implementation from chronology." The tested rule is: A disciplined audit distinguishes exact, modified, related/unproven, judicial, displaced and pending outcomes. [Option B, MCQ 29]
- **C - Incorrect:** The option states "Treat similarity as proof of adoption." The tested rule is: A disciplined audit distinguishes exact, modified, related/unproven, judicial, displaced and pending outcomes. [Option C, MCQ 29]
- **D - Incorrect:** The option states "Call every later judgment an executive action." The tested rule is: A disciplined audit distinguishes exact, modified, related/unproven, judicial, displaced and pending outcomes. [Option D, MCQ 29]

Examiner trap 29: Chronology and thematic similarity cannot establish causation.

MCQ 30

What do the ordinance cases contribute to this topic?

A. They abolish Articles 123 and 213. B. D.C. Wadhwa and Krishna Kumar Singh show that exceptional ordinance power cannot become routine legislative bypass. C. They prove every ordinance invalid. D. They implement an NCRWC amendment.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The option states "They abolish Articles 123 and 213." The tested rule is: The cases are evidence about constitutional working and repeated repromulgation; they are not NCRWC implementation evidence. [Option A, MCQ 30]
- **B - Correct:** This is the precise rule: The cases are evidence about constitutional working and repeated repromulgation; they are not NCRWC implementation evidence. [Option B, MCQ 30]
- **C - Incorrect:** The option states "They prove every ordinance invalid." The tested rule is: The cases are evidence about constitutional working and repeated repromulgation; they are not NCRWC implementation evidence. [Option C, MCQ 30]
- **D - Incorrect:** The option states "They implement an NCRWC amendment." The tested rule is: The cases are evidence about constitutional working and repeated repromulgation; they are not NCRWC implementation evidence. [Option D, MCQ 30]

Examiner trap 30: Use cases for their precise holding, not as general political criticism.

MCQ 31

Which reform route is correctly matched?

A. Every governance failure to Article 368. B. Every constitutional issue to executive instructions. C. Rules/conventions for procedural practice, administration for capacity, law for statutory gaps and Article 368 for textual allocation. D. Judicial interpretation for drafting an entire policy code.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The option states "Every governance failure to Article 368." The tested rule is: The least-legally-sufficient-route principle matches the remedy to the proven source of failure. [Option A, MCQ 31]
- **B - Incorrect:** The option states "Every constitutional issue to executive instructions." The tested rule is: The least-legally-sufficient-route principle matches the remedy to the proven source of failure. [Option B, MCQ 31]
- **C - Correct:** This is the precise rule: The least-legally-sufficient-route principle matches the remedy to the proven source of failure. [Option C, MCQ 31]
- **D - Incorrect:** The option states "Judicial interpretation for drafting an entire policy code." The tested rule is: The least-legally-sufficient-route principle matches the remedy to the proven source of failure. [Option D, MCQ 31]

Examiner trap 31: Constitutional amendment is neither the first nor the only reform tool.

MCQ 32

Which is the best overall assessment of NCRWC?

A. Its report is binding because experts authored it. B. All recommendations remain unimplemented. C. Basic structure blocks every proposed reform. D. It is a selective diagnostic reform menu whose proposals need democratic choice, competent legal route and current-status proof.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The option states "Its report is binding because experts authored it." The tested rule is: The Commission remains analytically valuable, but mandate, consultation, legitimacy, feasibility and implementation must be judged proposal by proposal. [Option A, MCQ 32]
- **B - Incorrect:** The option states "All recommendations remain unimplemented." The tested rule is: The Commission remains analytically valuable, but mandate, consultation, legitimacy, feasibility and implementation must be judged proposal by proposal. [Option B, MCQ 32]
- **C - Incorrect:** The option states "Basic structure blocks every proposed reform." The tested rule is: The Commission remains analytically valuable, but mandate, consultation, legitimacy, feasibility and implementation must be judged proposal by proposal. [Option C, MCQ 32]

- **D - Correct:** This is the precise rule: The Commission remains analytically valuable, but mandate, consultation, legitimacy, feasibility and implementation must be judged proposal by proposal. [Option D, MCQ 32]

Examiner trap 32: Reject both wholesale dismissal and wholesale constitutionalisation.

PYQS AND ANSWER PRACTICE

VERIFIED SUPPORTING MAINS PYQS

PYQ boundary: No direct NCRWC-specific GS-II Mains question was located in the verified ledgers. The four questions below are reproduced as supporting/cross-owned routes; NCRWC evidence is used only where it answers the exact demand.

PYQ 1 - 2021 GS-II Q1 - supporting/cross-owned

Question: "Constitutional Morality" is rooted in the Constitution itself and is founded on its essential facets. Explain the doctrine of "Constitutional Morality" with the help of relevant judicial decisions.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Constitutional morality is fidelity to the Constitution's text, structure, values and the restraints of public office, rather than compliance with transient social or political morality. It requires equal citizenship, reasoned power and respect for institutional roles. In *Government of NCT of Delhi v. Union of India* (2018), the Supreme Court linked it to constitutional trust, collaborative federalism and responsible government. *Navtej Singh Johar v. Union of India* (2018) held that constitutional morality must protect liberty and equality against exclusionary social morality. *Indian Young Lawyers Association* (2018) used equality and dignity to test religious exclusion, while later opinions demonstrate that the concept requires disciplined legal reasoning rather than personal preference. The NCRWC's focus on accountability, restraint and effective rights illustrates the same performance question: does institutional conduct realise constitutional commitments? Constitutional morality therefore makes a written Constitution a lived discipline of limited, answerable government.

Why this earns marks: It answers the exact demand through constitutional concepts, named authority and a controlled link to NCRWC.

How to improve this answer: Keep the NCRWC reference subordinate where the PYQ is owned by another topic; the exact question remains the organising demand.

Compression: Directive -> constitutional rule -> evidence -> analysis -> qualification -> verdict within 150 words.

PYQ 2 - 2019 GS-II Q12 - supporting/cross-owned

Question: "Parliament's power to amend the Constitution is a limited power and it cannot be enlarged into absolute power." In the light of this statement explain whether Parliament under Article 368 of the Constitution can destroy the Basic Structure of the Constitution by expanding its amending power.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Article 368 gives Parliament a wide constituent power, but not authority to destroy the Constitution's identity. *Kesavananda Bharati (1973)* held that every provision may be amended while the basic structure cannot be damaged or destroyed. The limitation is substantive: democracy, rule of law, judicial review, federalism, separation of powers and other foundational features cannot be abrogated through the amendment procedure. *Indira Nehru Gandhi v. Raj Narain* applied the doctrine to invalidate an amendment damaging free elections and judicial review. *Minerva Mills (1980)* struck clauses that sought unlimited amending power and excluded review, reasoning that limited amending power and judicial review are themselves basic features. Parliament therefore cannot use Article 368 to convert a limited power into an absolute one; a self-validating amendment would erase the distinction between a constituted amending body and original constituent power. This boundary also controlled NCRWC's express mandate: review could recommend reform within parliamentary democracy but could not authorise rewriting basic structure. Adaptability survives, but constitutional continuity sets its outer limit.

Why this earns marks: It answers the exact demand through constitutional concepts, named authority and a controlled link to NCRWC.

How to improve this answer: Keep the NCRWC reference subordinate where the PYQ is owned by another topic; the exact question remains the organising demand.

Compression: Directive -> constitutional rule -> evidence -> analysis -> qualification -> verdict within 250 words.

PYQ 3 - 2024 GS-II Q1 - supporting/cross-owned

Question: Examine the need for electoral reforms as suggested by various committees with particular reference to 'one nation-one election' principle. (*Spellings as printed.*)

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Electoral reform is needed to reduce opaque finance, criminalisation, weak internal democracy, defection incentives and repeated disruption by election cycles. The NCRWC recommended transparent party accounts, internal-democracy law, stricter consequences for defection and a broader Election Commission appointment process. Simultaneous elections may reduce recurring Model Code interruptions and campaign expenditure and could create predictable governance windows. However, they also raise federal and accountability risks: premature dissolution, constructive-confidence design, synchronisation, caretaker conventions and constitutional amendments need broad agreement. Regional issues may be crowded out by national campaigns, and expenditure savings are not enough to justify weakened legislative responsibility. Reform should therefore begin with political-finance transparency, ECI independence, clean candidates and party democracy. Any simultaneous-election design must preserve confidence of the House, federal choice, feasible transition and independent election administration rather than pursue calendar uniformity as an end in itself.

Why this earns marks: It answers the exact demand through constitutional concepts, named authority and a controlled link to NCRWC.

How to improve this answer: Keep the NCRWC reference subordinate where the PYQ is owned by another topic; the exact question remains the organising demand.

Compression: Directive -> constitutional rule -> evidence -> analysis -> qualification -> verdict within 150 words.

PYQ 4 - 2025 GS-II Q11 - supporting/cross-owned

Question: "Constitutional morality is the fulcrum which acts as an essential check upon the high functionaries and citizens alike...." In view of the above observation of the Supreme Court, explain the concept of constitutional morality and its application to ensure balance between judicial independence and judicial accountability in India.

Demand decoding: Answer the directive directly, distinguish recommendation from current law, use named evidence, assign precise implementation status and end with a qualified verdict.

Model solution: Constitutional morality means fidelity to constitutional values, procedures and institutional limits. For judges, it protects decisional independence from executive, legislative and popular retaliation: security of tenure, protected conditions of service, judicial review and institutional control support this function. *Kesavananda Bharati* (1973) and *Supreme Court Advocates-on-Record Association v Union of India* (2015) locate judicial independence within basic structure. Yet independence is not insulation from standards. The same morality demands transparent selection criteria, reasoned judgments, consistent recusal, ethical disclosure, fair complaint procedures and timely discipline. *Government of NCT of Delhi* and *Navtej Singh Johar v. Union of India* (2018) show that public power must be exercised through role fidelity, equality and reason-giving.

Removal under Articles 124(4)-(5) is an exceptional parliamentary safeguard, while the Restatement of Values and in-house procedure operate below that threshold. Their non-statutory and opaque features leave an accountability gap. Reform should preserve judicial primacy against executive capture while adding a permanent appointments secretariat, published criteria, recorded reasons, diversity data and an independent, fair complaints process. Constitutional morality thus requires independence in adjudication and accountability in the constitution and exercise of judicial office; neither executive control nor corporate judicial secrecy satisfies it.

Why this earns marks: It answers the exact demand through constitutional concepts, named authority and a controlled link to NCRWC.

How to improve this answer: Keep the NCRWC reference subordinate where the PYQ is owned by another topic; the exact question remains the organising demand.

Compression: Directive -> constitutional rule -> evidence -> analysis -> qualification -> verdict within 250 words.

ORIGINAL SOLVED MAINS PRACTICE

ORIGINAL MAINS PRACTICE 1 - 10 MARKS, 150 WORDS

Question: Explain the mandate, composition and legal status of the NCRWC.

Demand decoding: Explain requires verified identity, the mandate boundary and the legal consequence of advisory status.

The Union Government constituted the National Commission to Review the Working of the Constitution by resolution dated 22 February 2000. Justice M.N. Venkatachaliah, a former Chief Justice of India, chaired the eleven-member body; the report records that P.A. Sangma later resigned. It was adopted on 11 March and presented to the Prime Minister on 31 March 2002.

Its mandate was to review fifty years of constitutional working and recommend changes for efficient governance and socio-economic development. The terms expressly preserved parliamentary democracy and the Constitution's basic structure or features. Thus the NCRWC was a temporary executive and advisory commission, not a constitutional or statutory body, constituent assembly, court or Article 368 authority. Its recommendations could become operative only through the competent amendment, legislative, executive, judicial or institutional route. Expertise and consultation gave the report persuasive value, not binding force.

[ORIGINAL MAINS 1 MODEL ANSWER WORD COUNT: 141]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 2 - 10 MARKS, 150 WORDS

Question: Distinguish constitutional review, amendment and replacement, with reference to the NCRWC.

Demand decoding: Distinguish requires separate sources of authority, legal effects and limits.

Constitutional review diagnoses how text and institutions operate and proposes repair; its report does not itself alter law. The NCRWC performed this advisory function under an executive resolution and within parliamentary democracy and basic structure.

Constitutional amendment is different. Parliament acts under Article 368 through prescribed special majorities; amendments affecting specified federal provisions also require ratification by at least half the States. Even a procedurally valid amendment remains subject to the basic-structure doctrine developed in *Kesavananda Bharati* and *Minerva Mills*.

Replacement claims authority to establish a new constitutional order and therefore requires a fresh constituent mandate. NCRWC neither possessed nor asserted that power. Its exercise is best understood as constitutional maintenance: identify failure, select the least legally sufficient route and preserve constitutional identity. Basic structure therefore limits destructive amendment but does not freeze all reform.

[ORIGINAL MAINS 2 MODEL ANSWER WORD COUNT: 135]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 3 - 15 MARKS, 250 WORDS

Question: Assess the principal NCRWC recommendations across representative, executive, judicial and federal institutions.

Demand decoding: Assess requires organised coverage plus evaluation of design and present legal status.

The NCRWC linked democratic legitimacy to the performance of institutions rather than proposing a new Constitution.

For elections and parties, it recommended measures against criminalisation, audited political finance, a comprehensive party law, a plural Election Commission appointment body, and stricter anti-defection consequences including resignation, recontest and Election Commission adjudication. For Parliament and State legislatures, it proposed minimum sitting days, stronger committee scrutiny, defined privileges and constructive no-confidence with an alternative leader.

For the executive and administration, it proposed a ten per cent ministry ceiling, statutory Civil Services Boards, wider senior recruitment, information access, whistle-blower protection and stronger integrity institutions. Judicial proposals included a distinct National Judicial Commission, a complaints mechanism, higher retirement ages, access to speedy justice and better court administration.

Federal recommendations stressed Inter-State Council consultation, Chief Minister consultation in Governor appointments, Article 356 restraint, an Article 307 trade-and-commerce body and suggested periods for reserved Bills. Local-government proposals sought clearer functions, fiscal domains, staff control, elections and audit.

The architecture is valuable because it joins authority, accountability and delivery. Yet every item remained advisory. Later reforms may be exact, modified, merely similar, judicially developed, displaced or pending. The Commission should therefore be used as a classified reform menu, not as a statement of current law.

[ORIGINAL MAINS 3 MODEL ANSWER WORD COUNT: 206]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 4 - 15 MARKS, 250 WORDS

Question: Analyse why the working of the Constitution cannot be judged from constitutional text alone.

Demand decoding: Analyse requires a causal framework connecting formal rules to institutional behaviour and outcomes.

Constitutional text allocates power and protects rights, but institutions, conventions, incentives, political culture and administrative capacity determine whether those commitments become lived outcomes.

Legislative working depends on sitting time, committee scrutiny, financial control, opposition space and restraint in ordinance use. Electoral working requires control of criminalisation, transparent campaign finance, internal party democracy and credible anti-defection adjudication. Executive working turns on cabinet responsibility, reasoned discretion, professional civil services, transparency and anti-corruption enforcement.

Federal working requires consultation, predictable fiscal relations, restrained use of Governors and Article 356, and functioning intergovernmental forums. Local self-government needs actual transfer of functions, funds and functionaries. Judicial working concerns timely appointments, independence, accountability, access and compliance; tribunal efficiency cannot displace High Court judicial review recognised in *L. Chandra Kumar*.

Cases such as *S.R. Bommai*, *D.C. Wadhwa* and *Krishna Kumar Singh* demonstrate that formally available powers can be constitutionally corrosive when conventions and limits are ignored. Conversely, vacancies or poor implementation may reflect capacity rather than defective text. A sound diagnosis therefore asks whether failure lies in authority, restraint, delivery or correction, and then selects a proportionate reform route.

[ORIGINAL MAINS 4 MODEL ANSWER WORD COUNT: 183]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 5 - 20 MARKS, 250 WORDS

Question: Critically evaluate the NCRWC as a constitutional reform exercise and audit the implementation of its recommendations.

Demand decoding: Critically evaluate requires achievements, limits, differentiated implementation evidence and a graded verdict.

The NCRWC was a major exercise in constitutional maintenance. Constituted on 22 February 2000 and reporting on 31 March 2002, it reviewed fifty years of institutional experience while expressly preserving parliamentary democracy and basic structure. Consultation papers, expert studies and public responses produced 249 recommendations across rights, elections, legislatures, administration, courts, federalism and decentralisation.

Its strength was diagnostic breadth and route sensitivity: 58 proposals were classified for constitutional amendment, 86 for legislation and 105 for executive action. It connected democratic integrity with party finance, legislative scrutiny, civil-service professionalism, judicial access and federal consultation.

Its limits are equally important. An executive-appointed commission lacked constituent authority; consultation was not popular ratification. Its basic-structure assurance did not judicially pre-clear any later amendment. Recommendations varied in feasibility and political support, while implementation responsibility was dispersed among Parliament, States, executives, courts and institutions.

Implementation must therefore be audited individually. The 91st Amendment's fifteen per cent ministry ceiling is related but not the proposed ten per cent. The Disaster Management Act, 2005 did not transfer disaster management to the Concurrent List. The later NJAC differed from NCRWC's commission and was invalidated in 2015. RTI and Lokpal statutes occupy related fields but require independent attribution.

The NCRWC succeeded more as a structured diagnosis and reform menu than as a single implemented programme. Selective adoption, modification or rejection is constitutionally legitimate when supported by evidence, deliberation and the competent legal route.

[ORIGINAL MAINS 5 MODEL ANSWER WORD COUNT: 233]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.

ORIGINAL MAINS PRACTICE 6 - 20 MARKS, 250 WORDS

Question: Design a route-sensitive constitutional reform framework for recurring failures in Indian governance.

Demand decoding: Design requires a decision framework, sectoral applications, constitutional limits and implementation controls.

Reform should begin with diagnosis, not an automatic demand for constitutional amendment. First identify whether the failure concerns legal authority, institutional restraint, capacity, incentives or corrective remedies.

Where the defect is procedural, House rules and conventions can improve Bill scrutiny, opposition time, reason-giving and restraint in ordinance use. Capacity failures such as vacancies, weak court infrastructure, poor records or unstable civil-service tenure require finance, staffing, technology and administrative redesign. Statutory gaps call for ordinary legislation: political-finance disclosure, party regulation, tribunal structure, whistle-blower protection and integrity institutions are examples.

Article 368 should be used only when constitutional text or allocation must change. Amendments affecting provisions specified in the proviso to Article 368(2) additionally require ratification by at least half the States. Judicial interpretation applies open-textured provisions and protects rights, federalism, judicial review and basic structure, but courts cannot replace a complete legislative policy. Federal disputes also require consultation through institutions such as the Inter-State Council, while local devolution depends heavily on State law and administration.

Every proposal should identify the competent actor, finance, timetable, transparency mechanism, review forum and outcome metric. It must then be tested against rights, democratic legitimacy, federal balance, basic structure and implementation capacity.

The NCRWC illustrates this plural route logic. Constitutional durability comes from matching remedy to defect: under-constitutionalisation evades law, but over-constitutionalisation creates rigidity and mistakes poor working for defective text.

[ORIGINAL MAINS 6 MODEL ANSWER WORD COUNT: 226]

Examiner note: The answer follows claim -> named evidence -> analysis -> qualification and remains within the stated ceiling.